

CHAPTER 17: DEVELOPMENT REVIEW PROCESS

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Section 17.1 Purpose and Applicability

The purpose of this Chapter is to establish an orderly process to develop land within the Town of China Grove. It is also the intent of this Chapter to provide a clear and comprehensible development process that is fair and equitable to all interests including the petitioners, affected neighbors, Town staff, related agencies, the Planning Board, and the Town Council. Approved plans shall be the guiding documents for final approval and permitting.

The development review process applies to all new developments within the Town of China Grove except for existing individual lots for single-family detached residential and two-family residential (duplex) development. The provisions of this chapter shall be applicable to all Minor and Major Subdivisions, Minor and Major Site Plans, Special Use Site Plans, and Vested Rights Site Plans. The Zoning Administrator or designee may waive the required development review process only in the following cases when he determines that the submission of a development plan in accordance with this Chapter would serve no useful purpose:

- A. Accessory structures
- B. Any enlargement of a principal building by less than 20 percent of its existing size provided such enlargement will not result in parking or landscaping improvements.
- C. A change in principal use where such change would not result in a change in lot coverage, parking, or other site characteristics.

17.1.1 Application Completeness

An application for development approval shall be deemed complete if it is in the required number and form, includes all requested information and is accompanied by the applicable fee. A determination of application completeness shall be made within five (5) working days of application filing. If an application is determined to be incomplete, then it has not been submitted for the purposes of this ordinance, and the Zoning Administrator shall provide written notice to the applicant along with explanation of the application's deficiencies. No further processing of the application shall occur until the deficiencies are corrected. If the deficiencies are not corrected by the applicant within twenty (20) working days, the application shall be considered withdrawn.

17.1.2 Permit Choice

If an application is made in accordance with this ordinance, and deemed complete by the Zoning Administrator, for a development approval and development regulations change between the time the application was submitted and a decision is made, the applicant may choose which version of the development regulation will apply to the application. If the development permit applicant chooses the version of the rule or ordinance applicable at the time of permit application, the applicant shall not be required to await the outcome of the amendment to the rule, map or ordinance prior to acting on the development permit. N.C.G.S. 160D-108(b).

If a land development regulation is amended by the Town Council between the time a development permit application was submitted and a development permit decision is made or if a land development regulation is amended after a development permit decision has been challenged and found to be wrongfully denied or illegal, the development permit applicant may choose which adopted version of the rule or ordinance

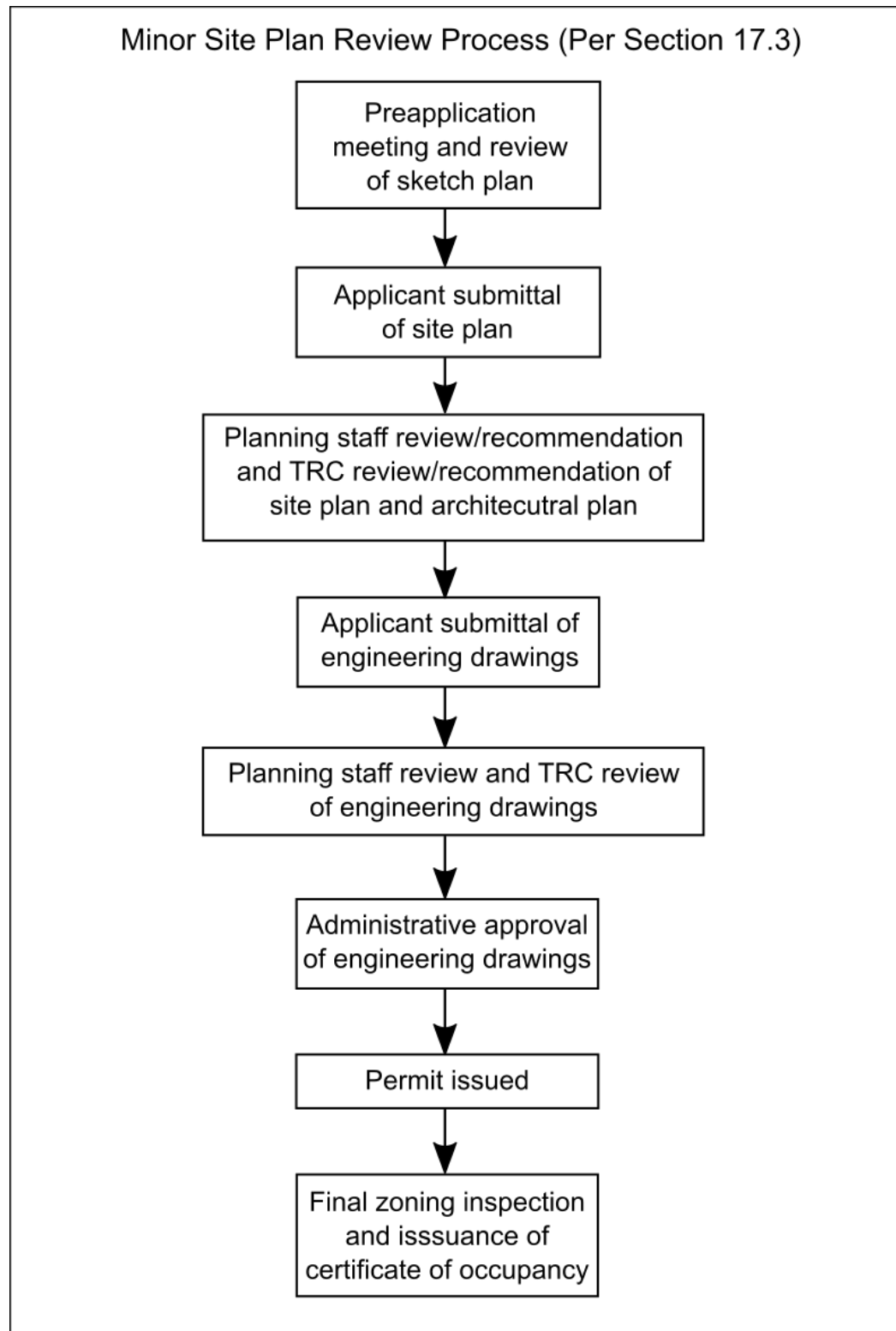
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will apply to the permit and use of the building, structure, or land indicated on the permit application in the manner established in G.S. § 143-755.

- A. If an applicable rule or ordinance is amended after the development permit is wrongfully denied or after an illegal condition is imposed, as determined in a proceeding challenging the permit denial or the condition imposed, the development permit applicant may choose which adopted version of the rule or ordinance will apply to the permit and use of the building, structure, or land indicated on the permit application. Provided, however, any provision of the development permit applicant's chosen version of the rule or ordinance that is determined to be illegal for any reason shall not be enforced upon the applicant without the written consent of the applicant.
- B. If a permit application is placed on hold at the request of the applicant for a period of six consecutive months or more, or the applicant fails to respond to comments or provide additional information reasonably requested by the local or State government for a period of six consecutive months or more, the application review shall be discontinued and the development regulations in effect at the time permit processing is resumed shall be applied to the application.
- C. Multiple Permits for Development Project. – Subject to G.S. § 160D-108(d), where multiple local development permits are required to complete a development project, the development permit applicant may choose the version of each of the local land development regulations applicable to the project upon submittal of the application for the initial development permit. This provision is applicable only for those subsequent development permit applications filed within 18 months of the date following the approval of an initial permit. For purposes of the vesting protections of this subsection, an erosion and sedimentation control permit or a sign permit is not an initial development permit.

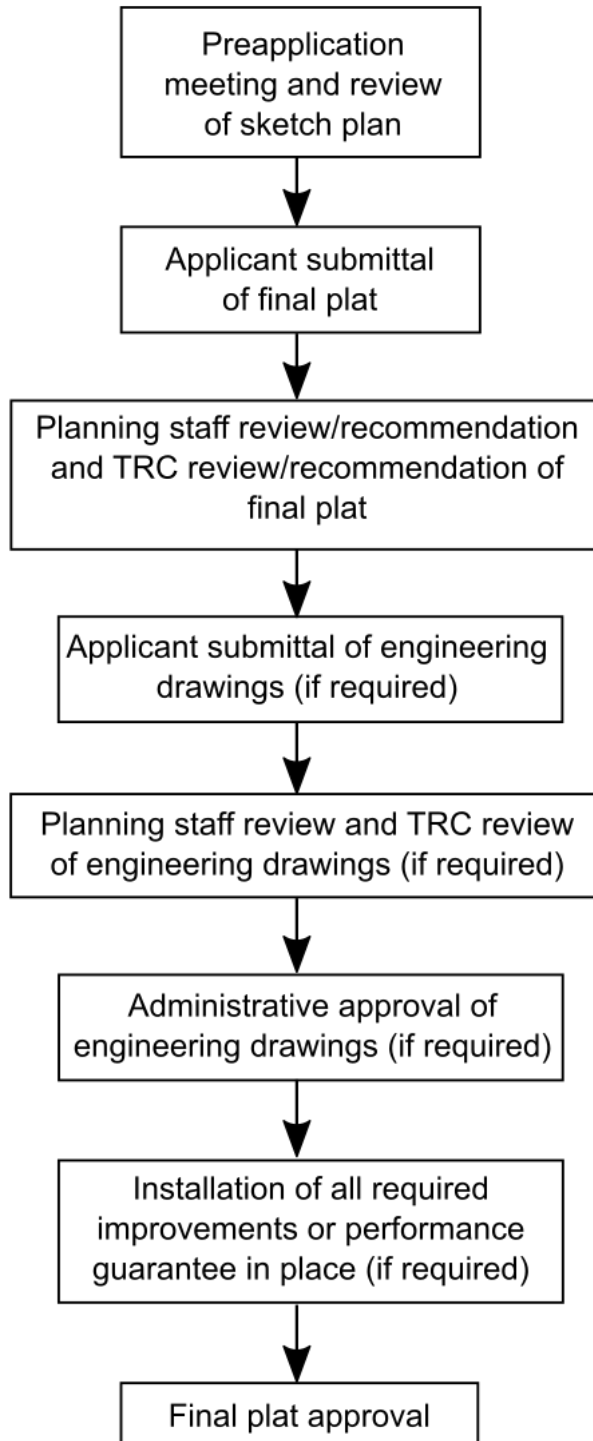
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Section 17.2 Development Review Process Flow Charts

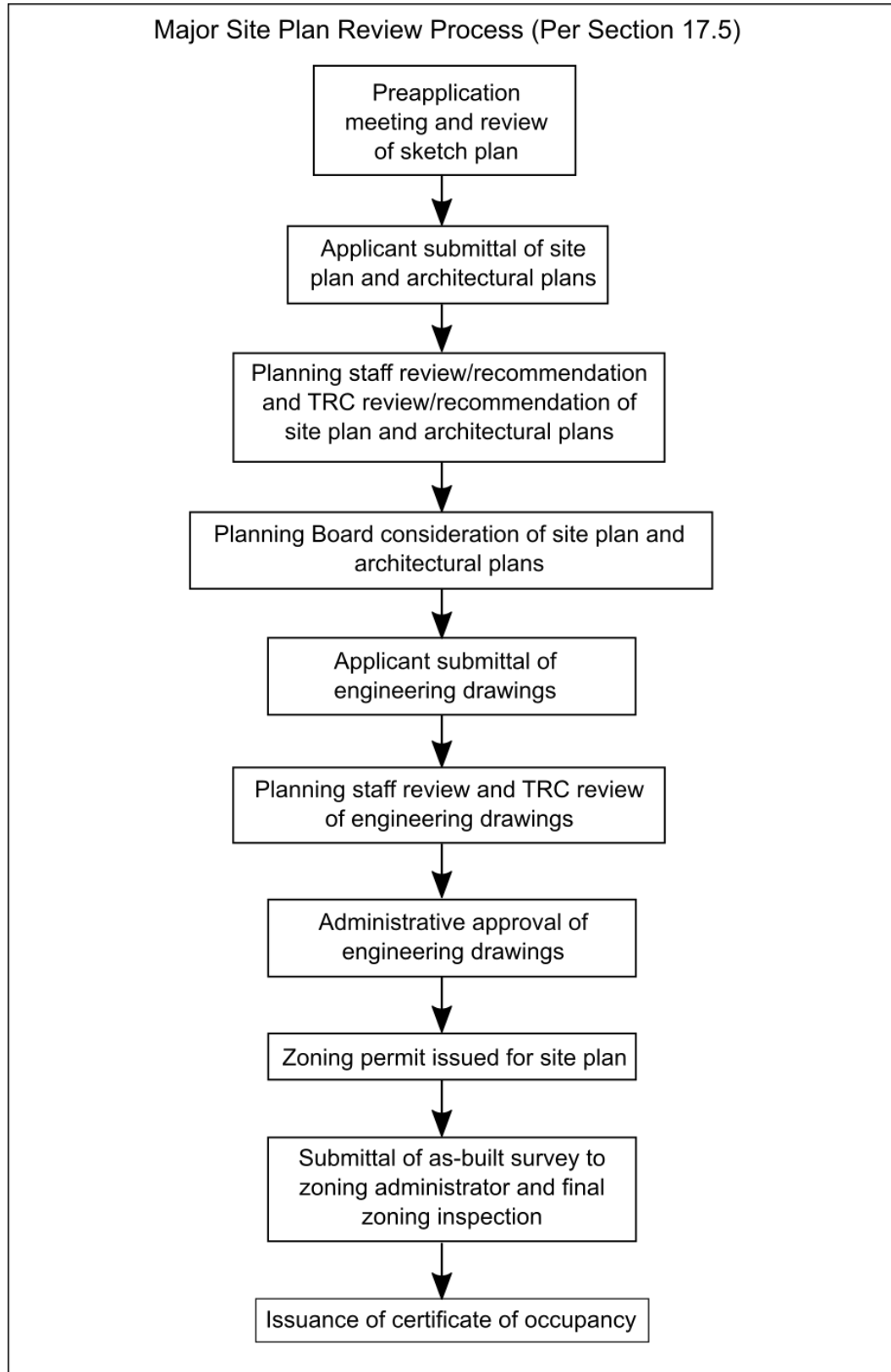


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Minor Subdivision Plan Review Process (Per Section 17.4)

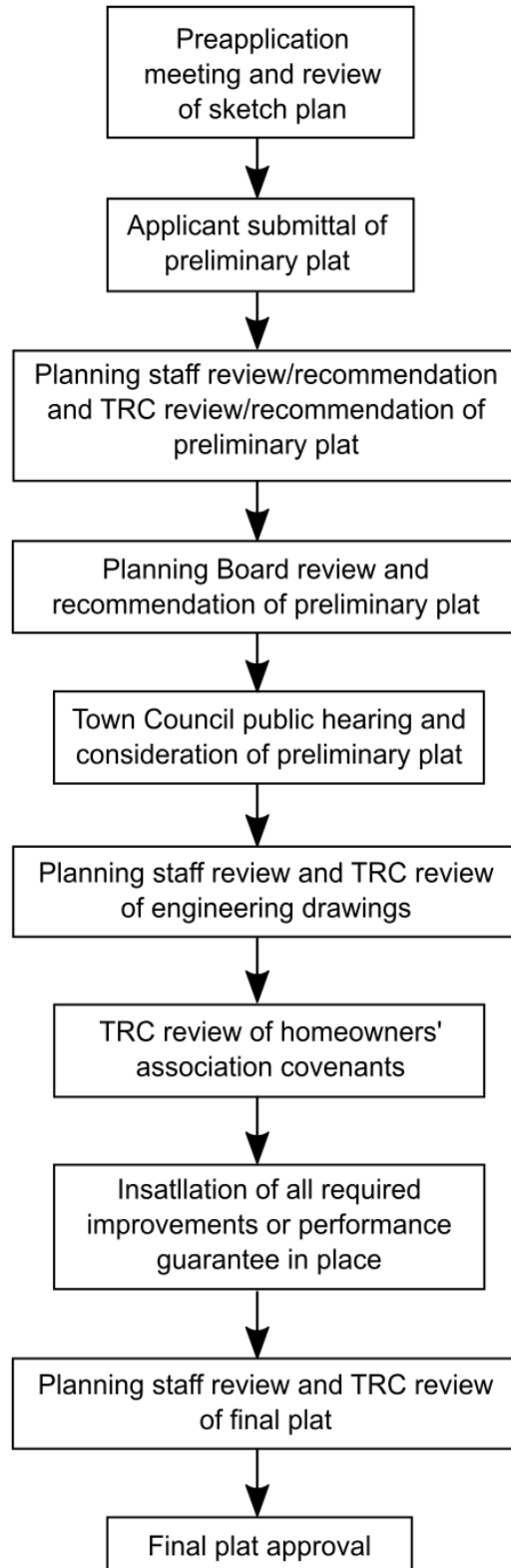


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Major Subdivision Review Process (Per Section 17.6)



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Section 17.3 Minor Site Plan Approval

17.3.1 Preapplication Meeting & Sketch Plan

The applicant shall schedule a pre-application meeting with the Zoning Administrator to review a Sketch Plan of the proposed development. The Sketch Plan shall meet the requirements of Section 10.2. The Zoning Administrator will advise the applicant of all applicable Town regulations and policies, suggest development alternatives, application procedures, and fees. The China Grove Town Council may adopt from time to time a schedule of fees for application and approval processing as specified in this Ordinance. The pre-application meeting is a non-binding and informal review of a development proposal intended to provide information to the applicant on the procedures and policies of the Town of China Grove and does not confer upon the applicant any development rights. The Zoning Administrator may submit a Sketch Plan to other departments or agencies or departments for input and recommendations. After a reasonable review of the Sketch Plan, the Zoning Administrator shall forward all appropriate comments to the applicant.

17.3.2 Application for Site Plan Review

A site plan meeting the requirements of Section 18.6 and architectural plans meeting the requirements of Chapter 13 shall be submitted and shall be accompanied by a completed application and payment of a fee as adopted by the Town Council.

17.3.3 Planning Staff and TRC Site Plan Review

The Zoning Administrator or his/her designee will present the Plans to the Technical Review Committee. The Plans will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may also circulate the Plans to the relevant governmental agencies and officials may include, but need not be limited to those listed below:

Technical Review Committee

Zoning Administrator
Town Manager
Public Works Department
Police Department
Fire Department
Town Engineer
Town Council Member
Planning Board Member
US Army Corp of Engineers
US Soil Conservation Services

Others

Town Attorney
Parks and Recreation Committee
Utility Providers
Rowan County Health Department
Rowan County Board of Education
Metropolitan Planning Organization
Metropolitan Transit Commission
NCDOT
NC DENR

17.3.4 Application for Engineering Drawing Review

The Engineering Drawings shall be drawn to the specification of Section 18.7 and shall be submitted and accompanied by a completed application and payment of a fee as adopted by the Town Council. The types of Plans to be included in a set of Engineering Drawings are as follows:

- Site Plan
- Existing Conditions
- Grading Plan
- Soil and Erosion Control Plan
- Landscaping Plan
- Lighting Plan
- Street Details
- Infrastructure Details

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17.3.5 Planning Staff and TRC Engineering Drawing Review

The Zoning Administrator or his/her designee will present the Drawings to the Technical Review Committee. The Drawings will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Drawings to be circulated to the relevant governmental agencies and officials. These included but are not limited to those listed in 17.3.2.

17.3.6 Engineering Drawing Approval

If the Drawings are found to meet all the applicable requirements of this Ordinance, then the Zoning Administrator shall approve the Engineering Drawings.

17.3.7 Permit Issued

If all the Plans are found to meet ~~all of~~ the applicable regulations of this Ordinance, then the Zoning Administrator shall issue a Zoning Permit for the Site Plan.

17.3.8 Zoning Inspections and Certificates of Occupancy

Prior to the issuance of a Certificate of Occupancy by Rowan County Building Inspections, the Zoning Administrator or his designee shall conduct a final zoning inspection to ensure that the approved plans have been followed and all required improvements have been installed to Town standards.

Section 17.4 Minor Subdivision Approval

17.4.1 Minor Subdivision

A minor subdivision is defined as a subdivision where all the following conditions exist:

- No public right-of-way dedication; and
- The entire tract to be subdivided is ten (10) acres or less in size; and
- The resultant subdivision will produce five (5) or fewer lots.

A preliminary plat shall not be required. Engineering Drawings may be required prior to the approval of a final plat depending on the circumstances of the Subdivision.

17.4.2 Preapplication Meeting & Sketch Plan

The applicant shall schedule a pre-application meeting with the Zoning Administrator to review a Sketch Plan of the proposed subdivision. The Sketch Plan shall meet the requirements of Section 18.2. The Zoning Administrator will advise the applicant of all applicable Town regulations and policies, suggest development alternatives, application procedures, and fees. The China Grove Town Council may adopt from time to time a schedule of fees for application and approval processing as specified in this Ordinance. The pre-application meeting is a non-binding and informal review of a development proposal intended to provide information to the applicant on the procedures and policies of the Town of China Grove and does not confer upon the applicant any development rights. The Zoning Administrator may submit a Sketch Plan to other departments or agencies or departments for input and recommendations. After a reasonable review of the Sketch Plan, the Zoning Administrator shall forward all appropriate comments to the applicant.

17.4.3 Application for Review

The Final Plat meeting the requirements of Section 18.5 shall be submitted and shall be accompanied by a completed application and payment of a fee as adopted by the Town Council.

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17.4.4 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the Plan to the Technical Review Committee. The Plan will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may also circulate the Plan to the relevant governmental agencies and officials may include, but need not be limited to those listed below.

The reviewing government agencies and officials may include, but need not be limited to the following:

Technical Review Committee

Zoning Administrator (Planning Department)
Town Manager
Public Works Department
Police Department
Fire Department
Town Engineer
Town Council Member
Planning Board Member
NCDOT
US Army Corps of Engineers

Others

Town Attorney
Parks and Recreation Committee
Utilities Providers
Rowan County Health Department
Rowan County Board of Education
Metropolitan Planning Organization
Metropolitan Transit Commission
Metropolitan Transit Commission
NC DENR
US Soil Conservation Services

17.4.5 Engineering Drawing Submittal

If Engineering Drawings are required for approval, the drawings shall be drawn to the specifications of Section 18.7 and shall be submitted and be accompanied by a completed application and payment of a fee as adopted by the Town Council. The plans may be altered by no more than ten percent (10%) of the total subdivision area due to issues discovered during the Engineering Drawing process. If changes to more than ten percent (10%) of the total subdivision area result, a new plat must be submitted and reviewed. Also, the total number of lots or units may be decreased but not increased. The types of plans to be included in a set of Engineering Drawings are as follows:

- Plat
- Existing Conditions
- Grading Plan
- Soil and Erosion Control Plan
- Landscaping Plan
- Lighting Plan
- Street Details
- Infrastructure Details

17.4.6 Planning Staff and TRC Review

The Zoning Administrator or his designee will present the Plan to the Technical Review Committee. The Plan will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Plan to be circulated to the relevant governmental agencies and officials and may include, but need not be limited to those listed in Section 17.5.3.

17.4.7 Engineering Plan Approved

If the Plan is found to meet all the applicable regulations of this Ordinance, then the Zoning Administrator shall approve the engineering plans.

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17.4.8 Improvement Installation and Guarantees

Upon approval of Engineering Drawings, the developer may proceed with the installation of or arrangement for required improvements in accordance with the approved Plat and the requirements of this Ordinance. Prior to approval of a final plat, the developer shall have installed the improvements specified in this Ordinance or guaranteed their installation in accordance with Section 17.8 Performance Guarantees.

17.4.9 Final Plat Approved

If the Plan is found to meet all of the applicable regulations of this Ordinance, then the Zoning Administrator shall approve the final plat.

Section 17.5 Major Site Plan Approval

17.5.1 Preapplication Meeting & Sketch Plan

The applicant shall schedule a pre-application meeting with the Zoning Administrator to review a Sketch Plan of the proposed development. The Sketch Plan shall meet the requirements of Section 18.2. The Zoning Administrator will advise the applicant of all applicable Town regulations and policies, suggest development alternatives, application procedures, and fees. The China Grove Town Council may adopt from time to time, a schedule of fees for application and approval processing as specified in this Ordinance. The pre-application meeting is a non-binding and informal review of a development proposal intended to provide information to the applicant on the procedures and policies of the Town of China Grove and does not confer upon the applicant any development rights. The Zoning Administrator may submit a Sketch Plan to other departments or agencies or departments for input and recommendations. After a reasonable review of the Sketch Plan, the Zoning Administrator shall forward all appropriate comments to the applicant.

17.5.2 Application for Review

A Site Plan meeting the requirements of Section 18.6 and Architectural Plans meeting the requirements of Chapter 5 shall be submitted and shall be accompanied by a completed application and payment of a fee as adopted by the Town Council.

17.5.3 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the Plans to the Technical Review Committee. The Plans will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Plans to be circulated to the relevant governmental agencies and officials may include, but need not be limited to those listed below:

Technical Review Committee

Zoning Administrator (Planning Department)
Town Manager
Public Works Department
Police Department
Fire Department
Town Engineer
Town Council Member
Planning Board Member
NCDOT

Others

Town Attorney
Parks and Recreation Committee
Utilities Providers
Rowan County Health Department
Rowan County Board of Education
Metropolitan Planning Organization
Metropolitan Transit Commission
Metropolitan Transit Commission
NC DENR

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US Army Corps of Engineers

US Soil Conservation Services

17.5.4 Major Site Plan Review by Planning Board

The Planning Board shall conduct a public review of the site plan as referred to it by the Technical Review Committee. Based on this Ordinance, the Planning Board may add or amend conditions for approval of the plan and forward these to the applicant. The applicant shall have 60 days to address the conditions and resubmit the plan to town staff. Once the site plan meets all UDO requirements it shall be approved.

17.5.5 Application for Engineering Drawings Review

The Engineering Drawings as outlined in Section 18.7 of this Ordinance shall be submitted and accompanied by a completed application and payment of a fee as adopted by the Town Council. The types of plans to be included in a set of Engineering Drawings are as follows:

- Site Plan
- Existing Conditions
- Grading Plan
- Soil and Erosion Control Plan
- Landscaping Plan
- Lighting Plan
- Street Details
- Infrastructure Details

17.5.6 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the Drawings to the Technical Review Committee. The Drawings will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Plan to be circulated to the relevant governmental agencies and officials may include but need not be limited to those listed in Section 17.5.3.

17.5.7 Engineering Drawing Approved

If the Drawings are found to meet all the applicable regulations of this Ordinance, then the Zoning Administrator shall approve the engineering drawings.

17.5.8 Permit Issued

If the Plans are found to meet the applicable regulations of this Ordinance, then the Zoning Administrator shall issue a Zoning Permit for the Site Plan.

17.5.9 Zoning Inspections and Certificates of Occupancy

- A. An as-built survey shall be submitted to the Zoning Administrator by the Developer upon completion of the building foundation to ensure that setbacks and building orientation match the approved Site Plan. If the survey shows that the placement of the building is incorrect, then the Zoning Administrator shall issue a Stop-Work Order and all construction shall be halted until the problem is remedied.
- B. Prior to the issuance of a Certificate of Occupancy by Rowan County Building Inspections, the Zoning Administrator or his designee shall conduct a final zoning inspection to ensure that the approved plans have been followed and all required improvements have been installed to Town standards.

Section 17.6 Major Subdivision Approval

17.6.1 Major Subdivisions

A major subdivision is defined as a subdivision where any one or more of the following conditions exist:

- Dedication of public right-of-way or other public tracts; or,
- Dedication of private right-of-way; or
- The entire tract to be subdivided is greater than ten (10) acres; or,
- The resultant subdivision will produce more than five (5) lots.

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17.6.2 Preapplication Meeting & Sketch Plan

The applicant shall schedule a pre-application meeting with the Zoning Administrator to review a Sketch Plan of the proposed development. The Sketch Plan shall meet the requirements of Section 18.2. The Zoning Administrator will advise the applicant of all applicable Town regulations and policies, suggest development alternatives, application procedures, and fees. The China Grove Town Council may adopt from time to time a schedule of fees for application and approval processing as specified in this Ordinance. The pre-application meeting is a non-binding and informal review of a development proposal intended to provide information to the applicant on the procedures and policies of the Town of China Grove and does not confer upon the applicant any development rights. The Zoning Administrator may submit a Sketch Plan to other departments or agencies or departments for input and recommendations. After a reasonable review of the Sketch Plan, the Zoning Administrator shall forward all appropriate comments to the applicant.

17.6.3 Application for Preliminary Plat Review

- A. A Preliminary Plat meeting the requirements of Section 18.3 shall be submitted and shall be accompanied by a completed application and payment of a fee as adopted by the Town Council.
- B. If a rezoning is a part of the request, a statement regarding the consistency of the request with adopted Town plans and policies and the surrounding area must also be included.
- C. If a new Conditional Zoning District is a part of the request, a statement regarding the reasonableness of the request must also be included.

17.6.4 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the plans to the Technical Review Committee. The Plans will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require that the Plan be circulated to the relevant governmental agencies and officials for comments and recommendations. The reviewing agencies and officials may include, but need not be limited to those listed below:

Technical Review Committee

Zoning Administrator (Planning Department)
Town Manager
Public Works Department
Police Department
Fire Department
Town Engineer
Town Council Member
Planning Board Member
NCDOT
US Army Corps of Engineers

Others

Town Attorney
Parks and Recreation Committee
Utilities Providers
Rowan County Health Department
Rowan County Board of Education
Metropolitan Planning Organization
Metropolitan Transit Commission
Metropolitan Transit Commission
NC DENR
US Soil Conservation Services

17.6.5 Review and Recommendation by the Planning Board

- A. Following a complete review by the Planning Staff and TRC, the Zoning Administrator shall schedule the application for review by the Planning Board at the next regularly scheduled meeting.
- B. The Planning Board shall have up to 30 days from the date of referral by the Zoning Administrator to recommend approval, approval with conditions, or denial of the request to the Town Council.

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- C. In instances where the major subdivision will require the property to be rezoned, the Planning Board shall include with its recommendation a written statement regarding the consistency of the request with adopted Town plans and policies and the surrounding area.
- D. For Conditional Zoning District requests, the Planning Board shall include with its recommendation a written statement regarding the reasonableness of the request.

17.6.6 Public Meeting by the Town Council

Upon receipt of a recommendation from the Planning Board, the Town Council shall conduct a public meeting to review the subdivision plat. In cases where approval of the plat will require the property to be rezoned, a public hearing will be held following procedures outlined in Chapter 15.

17.6.7 Consideration by the Town Council

- A. After the public review, the Town Council shall have up to 60 days to approve, approve with conditions, or deny the request. Any decisions regarding the Major Subdivision must be based on provisions and standards contained within the Unified Development Ordinance, and once the plan meets those provisions and standards it shall be approved.

17.6.8 Time Frame of Approval of Preliminary Plat

Preliminary plat approval shall be valid for two (2) years unless a greater time period is granted through a Vested Rights request. If final plat approval has not been obtained within said two (2) year period, preliminary plat approval shall become void. A new preliminary plat shall be required to be submitted and such plat shall be in conformity with all current and applicable standards of this Ordinance. Notwithstanding, the developer may submit a request to the Zoning Administrator for a time extension for up to one (1) year for final plat submittal. Said request must be submitted to the Zoning Administrator prior to the original plat expiration date. No more than one (1) such extension may be granted by the Zoning Administrator per subdivision. The developer may submit a final plat for only a portion of the subdivision given preliminary plat approval. Said submission shall extend the expiration date for the remaining portion(s) of the subdivision for an additional two (2) years past the date of said final plat approval.

17.6.9 Application for Engineering Drawings Review

The Engineering Drawings shall be drawn to the specifications in Section 18.7 and shall be submitted and accompanied by a completed application and payment of a fee as adopted by the Town Council. The types of plans to be included in a set of Engineering Drawings are as follows:

- Site Plan or Preliminary Plat
- Existing Conditions
- Grading Plan
- Soil and Erosion Control Plan
- Landscaping Plan
- Lighting Plan
- Street Details
- Infrastructure Details

17.6.10 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the Plan to the Technical Review Committee. The Plan will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Plan to be circulated to the relevant governmental agencies and officials may include but need not be limited to those listed in Section 17.6.4.

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17.6.11 Engineering Plan Approved

If the Plan is found to meet all the applicable regulations of this Ordinance, then the Zoning Administrator shall approve the engineering plans.

17.6.12 Homeowners Association Covenants Review

Prior to approval of any final plat for a major subdivision, the TRC shall review the covenants of the Homeowners Association to ensure compliance with Town requirements.

17.6.13 Improvement Installation and Guarantees

Upon approval of the Preliminary Plat and Engineering Drawings, the developer may proceed with the installation of or arrangement for required improvements in accordance with the approved Preliminary Plat and the requirements of this Ordinance. Prior to approval of a final plat, the developer shall have installed the improvements specified in this Ordinance or guaranteed their installation as provided in Section 9.8 Performance Guarantees. In lieu of requiring the completion, installation, and dedication of all improvements prior to final plat approval, the Town of China Grove may enter into an agreement with the developer whereby the developer shall agree to complete all required improvements. Once said agreement is signed by both parties and the security required herein is provided, the final plat may be approved by the China Grove Town Council, if all other requirements of this Ordinance are met. All such guarantees shall be subject to the approval of the Town Council and shall be made payable to the Town of China Grove.

17.6.14 Application of Final Plat Review

The Final Plat shall be drawn to the specifications in Section 18.5 and shall be submitted and accompanied by a completed application and payment of a fee as adopted by the Town Council.

17.6.15 Planning Staff and TRC Review

The Zoning Administrator or his/her designee will present the Final Plat to the Technical Review Committee. The Plat will be reviewed for compliance with this Ordinance and all related plans and policies. The Zoning Administrator may require the Plan to be circulated to the relevant governmental agencies and officials may include but need not be limited to those listed in Section 17.6.4.

17.6.16 Final Plat Approved

If the Plan is found to meet all applicable regulations of this Ordinance, then the Zoning Administrator shall approve the final plat.

Section 17.7 Subdivision Procedures

17.7.1 School Site Reservation

If the Town Council and the Rowan-Salisbury School System have jointly determined the specific location and size of any school sites to be reserved, Planning Staff shall immediately notify the Board of Education in writing whenever a sketch plan or for a subdivision is submitted which includes all or part of a school site to be reserved. The Board of Education shall promptly decide whether it still wishes the site to be reserved. If the Board of Education does wish to reserve the site, the subdivision shall not be approved without such reservation. The Board of Education shall then have 18 months beginning on the date of final approval of the subdivision within which to acquire the site by purchase or by initiating condemnation proceedings. If the Board of Education has not purchased or begun proceedings to condemn the site within 18 months, the developer may treat the land as freed of the reservation.

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17.7.2 Plat Approval General Procedures

After the effective date of this Ordinance, no subdivision plat of land within the jurisdiction of this Ordinance shall be filed or recorded unless it has first been submitted to the Zoning Administrator and approved by the proper body as set forth in this Ordinance, and until this approval is entered in writing on the face of the plat by the Zoning Administrator. Such shall not be required of any subdivision of land which, by definition herein, is exempt from the terms of this Ordinance.

The Register of Deeds shall not file or record a plat of a subdivision of land located within the jurisdiction of this Ordinance that has not been first approved in accordance with these provisions.

17.7.3 Issuance of Zoning Permits and Conveyance of Subdivision Lots

No zoning permit shall be issued by the Town of China Grove for the erection of any building on any lot within a proposed subdivision until a final plat of said subdivision has been approved in a manner as prescribed by this Ordinance and recorded at the Register of Deeds Office and where applicable, an improvements permit has been issued by the Rowan County Health Department.

After the effective date of this Ordinance, it shall be illegal for any person being the owner or agent of the owner of any land located within the territorial jurisdiction of this Ordinance, to subdivide his land in violation of this Ordinance or to transfer or sell land by reference to, exhibition of, or any other use of a plat showing a subdivision of the land before the plat has been properly approved under the terms of this Ordinance.

The description by metes and bounds in the instrument of transfer or other document used in the process of selling or transferring land shall not exempt the transaction from this penalty. The Town Council, through its attorney or other official so designated, may enjoin an illegal subdivision, transfer or sale of land by action for injunction. Civil penalties may be issued in accordance with Chapter 4.

7.4 Subdivision Exemptions

Certain subdivisions are exempted from subdivision regulations by NCGS 160D-802. The divisions of land exempted are described in Section 9.4.1. of this ordinance.

Section 17.8 Performance Guarantees

17.8.1. Purpose

A performance guarantee in accordance with the standards of this section shall be furnished to the Town prior to Engineering Plan Approval in the following circumstances:

- A. To ensure completion of public infrastructure improvements (e.g. streets, alleys, bike lanes, curb and gutter, sidewalks, bike paths, crosswalks, traffic signs and controls, street lights, fire lanes, bus shelters, and greenway paths) that are required as part of Engineering Plan Approval.
- B. To ensure completion of required plantings of replacement trees, buffer screening, and landscaping.

17.8.2 Term of Performance Guarantee

The term of a performance guarantee shall reflect any time limit for completing installation of required improvements that is included in the Engineering Plan Approval in a condition deemed acceptable by the Zoning Administrator or Town Engineer. In any case the term shall not exceed three years. The Zoning

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Administrator or Town Engineer, as appropriate, may, for good cause shown and with approval of the provider of the guarantee, grant extensions of the term for up to a total extended period of two years.

17.8.3 Form of Performance Guarantee

- A. Where required, the owner or developer shall furnish a performance guarantee in any of the following forms with terms and conditions acceptable by the Finance Director and Town Attorney:
 - a. Surety bond issued by any company authorized to do business in this state;
 - b. Letter of credit issued by any financial institution licensed to do business in this state;
 - c. Another form of guarantee that provides equivalent security to a surety bond or letter of credit.
- B. The performance guarantee shall be conditioned on the performance of all work necessary to complete the installation of the required improvements within the term of the performance guarantees shall provide that in case of the owner's or developer's failure to complete the guaranteed improvements, the town shall be able to immediately obtain the funds necessary to complete installation of the improvements.

17.8.4 Amount of Performance Guarantee

- A. Performance guarantees for required improvements shall be in an amount equal to 125 percent of the estimated full cost of completing the installation of the required improvements within the term of the guarantee, including the costs of engineering, labor, materials, and project management.
- B. Estimated costs for completing installation of required public infrastructure improvements shall be itemized by improvement type and certified by the owner's or developer's licensed Professional Engineer, and subject to approval by the Town Engineer, or Zoning Administrator.
- C. Estimated costs for completing installation of replacement trees, buffer screening, and landscaping shall be itemized and certified by the owner's or developer's registered landscape architect or licensed Professional Engineer and are subject to approval by the Zoning Administrator.
- D. If the guarantee is renewed, the Town Engineer or Zoning Administrator, as appropriate, may require the amount of the guarantee be updated to reflect cost increases overtime.
- E. The amount of the performance guarantee may be waived or reduced by the Town Council where the improvements are being installed with federal funds or in other circumstances where similar third-party assurances of their completion.

17.8.5 Release or Reduction of Performance Guarantees

- A. Requirements for Release or Reduction

The Town Engineer or Zoning Administrator shall release or reduce a performance guarantee only after:

1. The owner or developer has submitted to the Town Engineer or Zoning Administrator, as appropriate, an application for a release or reduction of the performance guarantee that includes certification by the owner's or developer's engineer or landscape architect, as appropriate, that installation of the guaranteed improvements has been completed in accordance with approved plans and specifications.

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2. The Town Engineer or Zoning Administrator, as appropriate, has performed a final inspection of the improvements for which a release or reduction is requested, and certified in writing that installation of the guaranteed improvements has been completed in accordance with approved plans and specifications.
3. The owner or developer has reimbursed the Town for all costs associated with conducting an inspection that finds the guaranteed improvements for which a release or reduction is requested have not been installed in accordance with approved plans and specifications;
4. The owner or developer has provided the Town Engineer or Zoning Administrator, as appropriate, assurances that liens against guaranteed public infrastructure improvements will not be filed after their acceptance by the Town (e.g., through affidavits, releases, as waivers of liens from all contractors and subcontractors); and
5. The owner or developer has provided the Town Engineer or Zoning Administrator, as appropriate, any required maintenance guarantee for the same improvements

B. Limits on Reductions

1. No performance guarantee for public infrastructure improvements shall be reduced to less than 30 percent of the full amount of the performance guarantee until all guaranteed public infrastructure improvements have been completed by the owner or developer.
2. No performance guarantee for required site improvements such as replacement trees, buffer screening, and landscaping shall be reduced to less than 75 percent of the full amount of the performance guarantee until all guaranteed site improvements have been completed by the owner or developer.

17.8.6 Default and Forfeiture of Performance Guarantee

A. Notice of Failure to Install or Complete Improvements

If the owner or developer fails to complete installation of the guaranteed improvements within the term of the performance guarantee (as may be extended) the Town Engineer or Zoning Administrator shall give the owner or developer 30 day written notice of default by certified mail.

B. Town Completion of Improvements

After the 30-day notice period expires, the Town may:

Issue a Stop Work Order in accordance with Section 4.4.7 Issuance of Stop Work Order, and/or; Draw on the security and use the funds to perform work necessary to complete the installation of the guaranteed improvements. After completing such work, the Town shall provide a complete accounting of the expenditures to the owner or developer and, as applicable, refund all unused security deposited without interest.

Section 17.9 Special Use Permit Procedures

17.9.1 Purpose and Applicability

This Ordinance provides for several uses to be located by right in each general zoning district subject to the use meeting certain area, height, yard and off-street parking and loading requirements. In addition to these uses, the Ordinance allows some uses on a conditional basis subject to the issuance of a Special Use Permit

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by the Town Council. The purpose of having such uses being "Special" is to ensure that they would be compatible with surrounding development and in keeping with the purposes of the general zoning district in which they are located. Those uses shown as Special in the Permitted Uses Table in Chapter 7 shall be subject to the requirements and review process of this Section.

17.9.2 Approval Process

Special Use Permits shall follow the Town Council Approval process, conducting an evidentiary hearing in accordance with Section 17.10 and N.C.G.S. 160D-406. An application shall be filed with the Zoning Administrator and shall be accompanied by a site-specific plan meeting the requirements of a Major Site Plan. A complete application and site plan shall come before the Planning Board for review and recommendation. The Planning Board may, in its review, suggest reasonable conditions to the location, nature, and extent of the proposed use and its relationship to surrounding properties, parking areas, driveways, pedestrian and vehicular circulation systems, screening and landscaping, timing of development, and any other appropriate conditions. Such conditions may include dedication of any rights-of-way or easements for streets, water, sewer, or other public utilities necessary to serve the proposed development. Conditions and safeguards imposed under this subsection shall not include requirements for which the local government does not have authority under statute to regulate; nor requirements for which the courts have held to be unenforceable if imposed directly by the local government, including, without limitation, taxes, impact fees, building design elements within the scope of G.S. 160D-702(b), driveway-related improvements in excess of those allowed in G.S. 136-18(29) and G.S. 160A-307, or other unauthorized limitations on the development or use of land. Following Planning Board review and recommendation, the Town Council shall hold an evidentiary hearing and consider the application in accordance with the findings-of-fact in Section 17.9.4 below.

17.9.3 Notice of Hearing

Notice of evidentiary hearings conducted pursuant to this Section shall be mailed to the person or entity whose application is the subject of the hearing; to the owner of the property that is the subject of the hearing if the owner did not initiate the hearing, and to the owners of all parcels of land abutting the parcel of land that is the subject of the hearing. In the absence of evidence to the contrary, the local government may rely on the county tax listing to determine owners of property entitled to mailed notice. The notice must be deposited in the mail at least 10 days, but not more than 25 days, prior to the date of the hearing. Within that same time period the local government shall also prominently post a notice of the hearing on the site that is the subject of the hearing or on an adjacent street or highway right-of-way. The Town Council may continue an evidentiary hearing that has been convened without further advertisement. If an evidentiary hearing is set for a given date and a quorum of the board is not then present, the hearing shall be continued until the next regular board meeting without further advertisement.

17.9.4 Conditions, Evidence, & Findings-of-Fact

In approving an application for a Special Use Permit, the Town Council may attach fair and reasonable conditions to the approval. The petitioner will have a reasonable opportunity to consider and respond to any additional requirements prior to approval or denial by the Town Council. In no instance shall any of these conditions be less restrictive than any requirements which would pertain to that particular development found elsewhere in a similar zoning district. The applicant shall provide consent in writing to the conditions before the Special Use Permit will be issued. The applicant has the burden of producing competent, material, and substantial evidence to establish the facts and conditions. If any person submits evidence allegedly contrary to any of the facts or conditions, the burden of proof for overcoming such evidence shall rest with the applicant.

The Town Council shall issue a Special Use Permit if it has evaluated an application and determined that:

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- A. The use will not materially endanger the public health or safety if located where proposed and developed according to plan, and;
- B. The use meets all required conditions and specifications, and;
- C. The use will not substantially injure the value of adjoining or abutting property unless the use is a public necessity, and;
- D. The location and character of the use, if developed according to the plan as submitted and approved, will be in harmony with the area in which it is to be located and will be in general conformity with the adopted land use plans and other plans for physical development of the China Grove area as adopted by the Town Council.

17.9.5 Effect of Approval & Expiration of Approval

If an application for a Special Use Permit is approved by the Town Council, the owner of the property shall have the ability to develop the use in accordance with the stipulations contained in the Special Use Permit or develop any other use listed as a "permitted use" for the general zoning district in which it is located. Any Special Use Permit so authorized shall be perpetually binding to the property included in such permit unless subsequently changed or amended by the Town Council.

Unless the Town Council issues a Special Use Permit which either is specifically exempt from any time constraints or has some other specified time period for implementation, the applicant must secure a valid building permit within a two (2) years period from date of issuance of the special use permit. In addition, if the project for which a Special Use Permit was issued is not complete and a valid building permit is not in place at the end of said two (2) year period, the Zoning Administrator shall notify the applicant of either such finding, and within 60 days of said notification, the Planning Board shall make a recommendation concerning the rescission of the special use permit to the Town Council. The Town Council, after having conducted a public hearing to consider the rescission, may then rescind the Special Use Permit, or extend the life of the Special Use Permit for a specified period of time.

17.9.6 Alterations to Site & Amendments to Special Use Permit

Amendments to Special Use permits shall follow the process established in Section 17.12. Administrative Modifications.

17.9.7 Reapplication Following Denial

If a request for Special Use Permit is denied by the Town Council, a similar application for the same property or any portion thereof shall not be filed until the expiration of a 12-month period from the date of the most recent denial by the Town Council. This waiting period shall not be applicable where the application for a Special Use Permit is substantially different from the original application. The term "substantially different" as herein applied shall mean:

- The proposed principal use is different than the use contained in the original application; or
- The gross floor area of the proposed development is 50 percent or more smaller than contained in the original application.

Section 17.10 Quasi-judicial Procedure

17.10.1 Applicability

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Boards shall follow quasi-judicial procedures in determining appeals of administrative decisions, special use permits, variances, or any other quasi-judicial decisions.

17.10.2 Notice of Hearing

Notice of evidentiary hearings conducted pursuant to this Chapter shall be mailed to the person or entity whose appeal, application, or request is the subject of the hearing; to the owner of the property that is the subject of the hearing if the owner did not initiate the hearing; to the owners of all parcels of land abutting the parcel of land that is the subject of the hearing; and to any other persons entitled to receive notice as provided by the local development regulation. In the absence of evidence to the contrary, the local government may rely on the county tax listing to determine owners of property entitled to mailed notice. The notice must be deposited in the mail at least 10 days, but not more than 25 days, prior to the date of the hearing. Within that same time period, the local government shall also prominently post a notice of the hearing on the site that is the subject of the hearing or on an adjacent street or highway right-of-way. The board may continue an evidentiary hearing that has been convened without further advertisement. If an evidentiary hearing is set for a given date and a quorum of the board is not then present, the hearing shall be continued until the next regular board meeting without further advertisement.

17.10.3 Materials

The administrator or staff to the board shall transmit to the board all applications, reports, and written materials relevant to the matter being considered. The administrative materials may be distributed to the members of the board prior to the hearing if at the same time they are distributed to the board a copy is also provided to the appellant or applicant and to the landowner if that person is not the appellant or applicant. The administrative materials shall become a part of the hearing record. The administrative materials may be provided in written or electronic form. Objections to inclusion or exclusion of administrative materials may be made before or during the hearing. Rulings on unresolved objections shall be made by the board at the hearing.

17.10.4 Presentation of Evidence

The applicant, the local government, and any person who would have standing to appeal the decision under G.S. 160D-1402(c) shall have the right to participate as a party at the evidentiary hearing. Other witnesses may present competent, material, and substantial evidence that is not repetitive as allowed by the board.

Objections regarding jurisdictional and evidentiary issues, including, but not limited to, the timeliness of an appeal or the standing of a party, may be made to the board. The board chair shall rule on any objections, and the chair's rulings may be appealed to the full board. These rulings are also subject to judicial review pursuant to G.S. 160D-1402. Objections based on jurisdictional issues may be raised for the first time on judicial review.

17.10.5 Appearance of Official New Issues

The official who made the decision or the person currently occupying that position, if the decision maker is no longer employed by the local government, shall be present at the evidentiary hearing as a witness. The appellant shall not be limited at the hearing to matters stated in a notice of appeal. If any party or the local government would be unduly prejudiced by the presentation of matters not presented in the notice of appeal, the board shall continue the hearing.

17.10.6 Oaths

The chair of the board or any member acting as chair and clerk to the board are authorized to administer oaths to witnesses in any matter coming before the board

17.10.7 Subpoenas

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The board making a quasi-judicial decision under this Chapter through the chair or, in the chair's absence, anyone acting as chair may subpoena witnesses and compel the production of evidence. To request issuance of a subpoena, the applicant, the local government, and any person with standing under G.S. 160D-1402(c) may make a written request to the chair explaining why it is necessary for certain witnesses or evidence to be compelled. The chair shall issue requested subpoenas he or she determines to be relevant, reasonable in nature and scope, and not oppressive. The chair shall rule on any motion to quash or modify a subpoena. Decisions regarding subpoenas made by the chair may be immediately appealed to the full board. If a person fails or refuses to obey a subpoena issued pursuant to this subsection, the board or the party seeking the subpoena may apply to the General Court of Justice for an order requiring that its subpoena be obeyed, and the court shall have jurisdiction to issue these orders after notice to all proper parties.

17.10.8 Appeals in Nature of Certiorari

When hearing an appeal pursuant to G.S. 160D-947(e) or any other appeal in the nature of certiorari, the hearing shall be based on the record below, and the scope of review shall be as provided in G.S. 160D-1402(j).

17.10.9 Voting

The concurring vote of four-fifths of the board shall be necessary to grant a variance. A majority of the members shall be required to decide any other quasi-judicial matter or to determine an appeal made in the nature of certiorari. For the purposes of this subsection, vacant positions on the board and members who are disqualified from voting on a quasi-judicial matter under G.S. 160D-109(d) shall not be considered members of the board for calculation of the requisite majority if there are no qualified alternates available to take the place of such members.

17.10.10 Decision

The board shall determine contested facts and make its decision within a reasonable time. When hearing an appeal, the board may reverse or affirm, wholly or partly, or may modify the decision appealed from and shall make any order, requirement, decision, or determination that ought to be made. The board shall have all the powers of the official who made the decision. Every quasi-judicial decision shall be based upon competent, material, and substantial evidence in the record. Each quasi-judicial decision shall be reduced to writing, reflect the board's determination of contested facts and their application to the applicable standards, and be approved by the board and signed by the chair or other duly authorized member of the board. A quasi-judicial decision is effective upon filing the written decision with the clerk to the board or such other office or official as the development regulation specifies. The decision of the board shall be delivered within a reasonable time by personal delivery, electronic mail, or first-class mail to the applicant, landowner, and any person who has submitted a written request for a copy prior to the date the decision becomes effective. The person required to provide notice shall certify to the local government that proper notice has been made, and the certificate shall be deemed conclusive in the absence of fraud.

17.10.11 Judicial Review

Every quasi-judicial decision shall be subject to review by the superior court by proceedings in the nature of certiorari pursuant to G.S. 160D-1402. Appeals shall be filed within the times specified in G.S. 160D-1405(d).

Section 17.11 Rezoning Procedures

Rezoning (zoning map amendments) shall follow the approval process in Chapter 15.

17.11.1 Conventional Rezonings

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For Conventional Rezoning, a site-specific plan is not required. Approval of a Standard Rezoning shall result in an official amendment to the Town of China Grove Zoning Map. Any development of the property shall be reviewed and approved in accordance with the appropriate procedure depending on the type of development proposed.

17.11.2 Conditional Zoning Districts

Approval of a Conditional District shall result in official amendment to the Town of China Grove Zoning map. Applicants for Conditional Zoning may propose 1) conditions limiting the uses allowed in the requested zoning district; 2) conditions applicable to the development of the property; and/or 3) a site plan attached to the rezoning showing how the property will be developed; or any combination of the above. Planned Unit Development (PUD) and Mixed Residential (R-M) rezonings must use Conditional Zoning and will require specified uses, proposed conditions on development, and a site plan to be considered complete applications.

Section 17.12 Administrative Modifications

17.12.1 Major Amendments

Except as allowed under Minor Modifications all changes to an approved Special Use Permit, Conditional Zoning, and other development approvals are major amendments and shall follow the same process applicable for the original approval. In any case, the following changes to Special Use Permit approval or Town Council approval shall constitute a major modification:

1. A change in a condition of approval;
2. A change in use permitted;
3. A change in density of overall development;
4. An increase greater than ten percent in the ratio of gross floor area devoted to residential uses to that devoted to non-residential uses.

17.12.2 Minor Modifications

The Zoning Administrator is authorized to review and approve administratively a minor modification to an approved Special Use Permit, Conditional Zoning, Site Plan and other development approvals subject to the following limitations.

1. *General Limitations.* The minor modification:
 - a. Will not change the permitted uses, and.
 - b. Will not alter the basic relationship of the proposed development to adjacent property, and.
 - c. Will not increase or decrease the density of overall development, and.
 - d. Will not decrease the off-street parking ratio, reduce the yards provided at the periphery of the site by greater than five (5) feet, and.
 - e. Will add no more than 5,000 square feet of building or parking space to the site, and.

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- f. Meets all other ordinance requirements.
- 2. *Site Design*. Site design minor modifications are limited adjustments to the terms or design of an approved development plan or plat, including a site plan attached as a condition to a conditional zoning or special use permit. In addition to the general limitations on minor modifications, a site design minor modification must:
 - a. Comply with underlying zoning standards and other applicable conditions of approval;
 - b. Be limited to a minor change such as, without limitation, a minor adjustment to road configuration or internal circulation, a minor adjustment to building location, or a minor adjustment to utility alignment.
- 3. *Dimensional Standards*. Dimensional standard minor modifications are adjustments to the dimensional standards of the zoning ordinance. Dimensional standards may only be modified upon finding by the administrator, based on evidence from the permit holder, that the modification is needed to address a site characteristic or technical design consideration not known at the time of initial approval. In addition to the general limitations for minor modifications, dimensional standard modifications are limited to:
 - a. An adjustment in parking requirements up to the greater of 10 spaces or 10 percent.
 - b. An adjustment of setback requirements of 2 feet or 10 percent of the standard setback.
 - c. An adjustment to landscaping standards including required species, or location.

17.12.3 Changes to Individual Parcels within a Conditional District

If multiple parcels of land are subject to a special use permit, the owners of individual parcels may apply for permit modification so long as the modification would not result in other properties failing to meet the terms of the special use permit or regulations. Any modifications approved apply only to those properties whose owners apply for the modification.

17.12.4 Appeals and Variances

A decision on minor modification may be appealed to the Board of Adjustment as an administrative determination. An application for a minor modification does not preclude an applicant from seeking a variance from the Board of Adjustment.

Section 17.13 Vested Rights Procedure

17.13.1 Site-specific Vesting Plans

Upon approval by the Planning Board or Town Council, as appropriate, site-specific development plans are concurrently designated site-specific vesting plans establishing a vested right for at least two (2) years after the date of approval in accordance with Section 160D-108 of the North Carolina General Statutes.

- A. The process for submittal, approval, and amendment of a site-specific vesting plan is subject to the following:

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- a. The following development approvals qualify as site-specific vesting plans: special use permits, conditional zoning districts, major subdivision plans, major site plans, mixed residential developments, and planned unit developments.
 - b. Each site-specific vesting plan shall include the information required by the Town of China Grove for the underlying type of development plan.
 - c. Each site-specific vesting plan shall provide the notice and hearing required for the underlying type of development plan.
 - d. An approved site-specific vesting plan and its conditions may be amended with the approval of the owner and the local government in the same manner as required for the underlying type of development plan.
- B. A multi-phased development, as defined by this ordinance, shall be vested for the entire development with the zoning regulations in place at the time a site plan was approved for the initial phase of the multi-phase development. This right shall remain vested for a period of seven (7) years from the time a site plan approval is granted for the initial phase of the multi-phase development.
- C. Building Permits are valid for six (6) months. N.C.G.S 160D-108(d)(1)
- D. Zoning Permits are valid for one (1) year.

17.13.2 Effect of Approval

- A. A vested right shall confer upon the landowner the right to undertake and complete the development and use of said property under the terms and conditions of the site-specific vesting plan as provided for in this Section. Failure to abide by the terms and conditions placed upon such approval will result in the forfeiture of the vested right previously accorded.
- B. A vested right, once established as herein provided, shall preclude any zoning action by the Town which would change, alter, impair, prevent, diminish, or otherwise delay the development or use of the property as set forth in the approved site-specific development except under the following conditions:
1. The affected landowner provides written consent to the Town of his desire to terminate the vested right; or
 2. The Town determines, after having advertised and held a public hearing, that natural or man-made hazards exist on or in the immediate vicinity of the property which pose a serious threat to the public health, safety, and welfare if the project were to proceed as indicated in the site-specific development plan; or
 3. Compensation is made by the Town to the landowner for all costs, expenses, and other losses incurred including, but not limited to, all fees paid in consideration of financing, and all architectural, planning, marketing, legal, and any other consultant's fees incurred after approval together with interest thereon at the legal rate until paid; or
 4. The Town determines, after having advertised and held a public hearing, that the landowner or his representative intentionally supplied inaccurate information or made material misrepresentations which made a difference in the approval by the Town of the site-specific development plan; or

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5. Upon the enactment or promulgation of a State or Federal law or regulations which precludes development as contemplated in the site-specific development plan. In such a case the Town may (after having advertised and conducted a public hearing) modify the affected provisions upon a finding that the change in State or Federal law has a fundamental effect on the plan.
- C. Once a vested right is granted to a particular site-specific plan, nothing in this section shall preclude the Town from conducting subsequent reviews and approvals to ensure compliance with the terms and conditions of the original approval, provided such reviews and approvals are not inconsistent with the original approval.

Section 17.13.3 Extension

The Town Council may extend the vested rights period from two (2) to five (5) years if it determines the extension is warranted in light of all relevant circumstances including but, not limited to the size and phasing of the development, the level of investment, the need for development, economic cycles, and market conditions. If the landowner requests, the Town Council may conduct a public hearing to extend a vesting period not to exceed five (5) years from the date of approval. The vesting of any site plan beyond a two (2) year period shall only be authorized by the Town Council.

a. Required Public Notice of Hearing

- i. Notice shall be mailed to the person or entity whose application, or request is the subject of the hearing; to the owner of the property that is the subject of the hearing if the owner did not initiate the hearing; and to the owners of all parcels of land abutting the parcel of land that is the subject of the hearing. In the absence of evidence to the contrary, the local government may rely on the county tax listing to determine owners of property entitled to mailed notice. The notice must be deposited in the mail at least 10 days, but not more than 25 days, prior to the date of the hearing.
- ii. Within that same time period, the local government shall also prominently post a notice of the hearing on the site that is the subject of the hearing or on an adjacent street or highway right-of-way.

Section 17.13.4 Expiration, Limitations, and Revocation

- A. The vested right resulting from the approval of a site-specific plan may be revoked by the Town Council. In addition, a revocation may occur if the Town Council determines that the landowner has failed to comply with the terms and conditions of the approval or with any other applicable portion of the Zoning Ordinance. The vested right shall otherwise expire at the end of the approval period established by the Town Council.
- B. A valid development approval shall not expire if work on the project has substantially commenced within the initial validity period. Substantial commencement of work shall be determined by the Zoning Administrator based on any of the following:
 - a. The development has received and maintained a valid erosion and sedimentation control permit and conducted grading activity on a continuous basis and not discontinued it for more than thirty (30) days;
 - b. The development has installed substantial on-site infrastructure; or

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- c. The development has received and maintained a valid building permit for the construction and approval of a building foundation.
- C. Even if work has substantially commenced, a development approval still expires if development work is intentionally and voluntarily discontinued for a period of not less than 24 consecutive months, as calculated and tolled pursuant to N.C.G.S. 160D-108.
- D. A building permit issued by the Rowan County Building Inspector pursuant to NCGS 160D-403, 1110 may not be revoked because of the running of time on a piece of property for which a site-specific development plan has been approved and the vested right period has not otherwise expired.
- E. The establishment of a vested right on a piece of property for a site-specific plan shall not preclude the Town from establishing and enforcing on the property any additional regulations (adopted during the time the vested right was in effect) which are general in nature and applicable to all property subject to the regulations of this Ordinance.
- F. Revocation of any site-specific development plan designation eliminates the vested right established by approval of the site-specific development plan designation but does not itself terminate any unexpired development permit or approval associated with the plan.